

26CHCV00856 26CHCV00856

County: los-angeles

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PLAINTIFF'S MOTION

FOR LEAVE TO FILE SECOND AMENDED COMPLAINT

Motion filed on June 15, 2026.

MOVING PARTY: Liliya Hill (Plaintiff)

RESPONDING PARTY: Westcom Property Services, Inc.
(Defendant)

NOTICE: OK.

RELIEF REQUESTED: Plaintiff seeks leave to file the proposed
Second Amended Complaint.

RULING: Denied without prejudice.

BACKGROUND

On March 3, 2026, Plaintiff filed the Complaint. On April 6,
2026, Plaintiff filed the First Amended Complaint. On June 15, 2026, Plaintiff
filed the instant Motion for Leave to File Second Amended Complaint with a

supporting declaration and proposed Second Amended Complaint. On July 30, 2026, Plaintiff filed a supplemental declaration and exhibits. No opposition or reply appears in the record provided.

DISCUSSION

Code of Civil Procedure section 473, subdivision (a)(1) permits the Court, in furtherance of justice, to allow amendment of a pleading. This discretion should be exercised liberally in favor of amendment. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047.) California Rules of Court, rule 3.1324 requires a motion for leave to amend to include the proposed amended pleading and identify the allegations proposed to be deleted and added by page, paragraph, and line number. The supporting declaration must specify the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324(a), (b).)

Here, Plaintiff attaches the proposed Second Amended Complaint, but the Motion does not identify the allegations proposed to be deleted or added and their location by page, paragraph, and line number as required by rule 3.1324(a)(2) and (3). The proposed pleading restructures the operative pleading into five causes of action, including a dependent adult abuse and neglect claim.

Plaintiff's declaration states that the alleged misconduct is ongoing and that she is seeking amendment at the earliest possible juncture. However, the declaration does not specifically identify when the facts giving rise to the proposed amended allegations were discovered, as required by rule 3.1324(b)(3). Plaintiff's statements that no trial date has been set and that the amendment will cause no delay or prejudice address the procedural posture and prejudice, but do not supply the information required by subdivision (b)(3).

Plaintiff's supplemental declaration does not cure these deficiencies. It states that Plaintiff obtained additional evidence in July 2026 and explains why that material was not included with the June 15, 2026 Motion. It does not specifically identify when the facts giving rise to the proposed amendments were discovered.

The Motion therefore does not comply with rule 3.1324.

Because the deficiencies are curable, the Motion is denied without prejudice.

The Court is mindful that Plaintiff represents herself.

However, Plaintiff's self-represented status does not excuse compliance with applicable procedural rules. "[M]ere self-representation is not a ground for exceptionally lenient treatment," and, except where a particular rule provides otherwise, "the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation." (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985.) Likewise, a party proceeding in propria persona "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys," and "the in propria persona litigant is held to the same restrictive rules of procedure as an attorney." (*First American Title Co. v. Mirzaian* (2003) 108 Cal.App.4th 956, 958, fn. 1.)

CONCLUSION

Plaintiff's Motion for Leave to File Second Amended

Complaint is DENIED without prejudice to a renewed motion complying with California Rules of Court, rule 3.1324.